

The Port Of New Mangalore (Rates For The Use Of Wharf) Rules, 1977

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Union of India - Act

The Port Of New Mangalore (Rates For The Use Of Wharf) Rules, 1977

UNION OF INDIA

India

The Port Of New Mangalore (Rates For The Use Of Wharf) Rules, 1977

Rule THE-PORT-OF-NEW-MANGALORE-RATES-FOR-THE-USE-OF-WHARF-RULES-1977 of 1977

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The Port Of New Mangalore (Rates For The Use Of Wharf) Rules, 1977

Published vide Notification Gazette of India, Part 2, Section 3(i), page 977.

2029.

G.S.R. 391, dated 28th February, 1977. - Whereas draft of the port of New Mangalore (Rates for the Use of the Wharf) Rules, 1976, was published as required by sub-section (2) of Sec. 6 of the Indian Ports Act, 1908 (15 of 1908), at pages 2563 to 2572 of the Gazette of India, Extraordinary, Part III, Sec. 3, sub-section (i), dated the 18th October, 1976, under the notification of the Government of India in the Ministry of Shipping and Transport (Transport Wing) No. G.S.R. 851 (E), dated the 16th October, 1976, inviting objections and suggestions from all persons likely to be affected thereby till the expiry of a period of sixty days from the date of publication of that notification in the Official Gazette.

And whereas the said Gazette was made available to the public on the 28th October, 1976.

And whereas the objections and suggestions received from the public have been duly considered by the Central Government;

Now, therefore, in exercise of the powers conferred by Cl. (ii) of sub-section (1) of Sec. 6 of the said Act, the Central Government hereby makes the following rules, namely :

1.

Short title and commencement.

(1)

These rules may be called the Port of New Mangalore (Rates for the Use of Wharf) Rules, 1977.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Fixation of rates for the use of wharves, jetties and landing places.

(1)

Subject to the provisions of these rules, the rates to be paid for the use of wharves, jetties and landing places (hereinafter referred to as the wharfage dues) on goods landed at or shipped from the Port of New Mangalore shall be as specified in the Schedule (hereinafter referred to as the said Schedule) hereto annexed.

(2)

The wharfage dues shall be in addition to any charges towards rent for storage of goods in the quays, warehouses, transit sheds or landing places of the Port of New Mangalore.

3.

Goods to be placed at appointed places.

- All goods intended for shipment or landing within the limits of the Port of New Mangalore shall be placed at such place or places as the Traffic Manager of the said port may from time to time by notice affixed to some conspicuous part of his office specify.

4.

Applications for export and import of goods.

(1)

All applications for export or import of goods shall be made on the Forms specified in the Appendix to these rules and these Forms shall in all cases be correctly filled in and signed by shippers or consignees of the goods or by the agent.

(2)

Whenever required by the Traffic Manager of the said port to call for and inspect them, all necessary documents shall be produced by shippers or consignees or their agents at the time of shipping or loading of goods.

5.

Assessment how made.

(1)

All goods intended for shipment shall be assessed on export application and the wharfage dues, wherever necessary, shall be paid before the goods are shipped.

(2)

All goods landed within the limits of the Port of New Mangalore shall be assessed on import application and the wharfage dues, wherever necessary, shall be paid by the person concerned before the goods are delivered to him.

6.

Method of calculating wharfage dues.

(1)

The wharfage dues shall be calculated on the manifested tonnage of the vessel's cargo in the case of empties iron and steelscrap, ores and other goods in bulk.

(2)

In the case of cargo, other than that mentioned in sub-rule (1), the wharfage dues shall be calculated in accordance with the unit of weight measurement or liquid measure specified in the classification against each item of the goods in the said Schedule.

(3)

The wharfage dues shall be calculated on the total tonnage of each item of goods. For this purpose, the gross and not, the net tonnage of each package as specified in the relative invoice or other shipping document shall be taken, subject to a fresh check by the Port Administration, if the circumstances so require. In the absence of these documents or in the absence of the specification of gross tonnage therein, the tonnage arrived at by actual test-check shall be taken as the gross tonnage.

(4)

In these rules, for the purposes of the Scale of Rates.

(i)

One unit by weight means 1 tonne (1000/Kilograms);

(ii)

One unit by measurement means 1 cubic metre; and

(iii)

One unit by liquid measurement (capacity) means 1000 litres.

(5)

In calculating the gross weight or measurement by volume, or capacity of any individual item, fractions of one unit shall be reckoned as under.

(i)

fractions up to and including 0.25 shall be reckoned as 0.25;

(ii)

fractions over 0.25 and up to and including 0.50 shall be reckoned as 0.50;

(iii)

fractions over 0.50 and up to and including 0.75 shall be reckoned as 0.75; and

(iv)

fractions over 0.75 shall be reckoned as one unit.

(6)

Where alternative units are quoted in the said Schedule, the unit which is favourable to the Port Administration shall be taken.

(7)

Assessment on packages containing articles of a miscellaneous character shall be made at the rate applicable to the article on which the highest rate is chargeable.

(8)

Where marks are indistinguishable and the cargo is landed in bulk or under such conditions that the tonnage is not readily ascertainable, in that case.

(i)

if the cargo is landed at the Wharf, the tonnage shall be ascertained by taking the actual measurements and converting it at one cubic metre to a tonne; and

(ii)

if the cargo is conveyed by craft from a vessel at the other roads the licensed carrying capacity of the crafts shall be taken as the tonnage.

Note. - The Port Administration neither assumes responsibility for the cargo nor handles the same at the wharf or jetties.

7.

Removal from wharves of any rotten or such like goods discharged from a vessel.

- If any vessel discharges in the Port of New Mangalore any cargo goods or substance in such a rotten, putrid, damaged or other conditions as in the opinion of the Port Health Officer, to be a nuisance or to be injurious or dangerous to health, or if any cargo, goods or substance discharged from any vessel and lying on a wharf or in a shed or other property belonging to the said port shall thereafter be in such a rotten, putrid, damaged or other condition as in the opinion of the Port Health Officer, to be a nuisance or to be injurious or dangerous to health, the Traffic Manager of the said port may require the owner thereof, or if the owner should disclaim, deny or dispute the consignment or declines all responsibility for the same or if there be no owner, the owner, master or agent of the vessel from which the same had been discharged, to forthwith cause the said cargo, goods or substance to be removed from the wharf or

property of the said port and if such master, owner or agent, as the case maybe, shall, on being so required, refuse or neglect to clear the goods from the space within eighteen hours after notice, such removal may be effected in such manner as may be deemed fit by the Traffic Manager of the said port who may, if he thinks necessary, cause the same to be destroyed, and the said owner or the said master or agent, as the case maybe, shall, within forty-eight hours after demand in writing, pay to the credit of the Port Administration all the costs or expenses attending or occasioned by such removal and destruction and of such cleaning, purifying or disinfecting the place of discharge or storage as may be considered desirable by the Traffic Manager of the said Port.

8.

Porterage (handling of cargo) at the wharf or jetties.

(1)

The Port Administration shall not assume custody of any export cargo nor handle the same at the wharf or jetties.

(2)

The Port Administration may assume custody at shore and convey to transit space and sorts for delivery all import general cargo and other cargo for which over side delivery direct from ships or steamers is permitted in special cases by the Port Administration and the Customs Authorities, except the bulk cargo and the cargo relating to Item Nos. 5, 24, 26, 31, 43, 58, 66, 71 and 80 of the said Schedule, and for this service, in addition to wharfage dues, the following charges shall be levied, namely:

(1)

actual labour charges incurred by the Port Administration plus 20 per cent overheads;

(2)

Crane hire charges;

(3)

Forklift hire charges; and

(4)

overtime allowance admissible as per the relevant rules.

Schedule

[See rule 2]

Wharfage Dues

Item

No.

Description

of Goods

Unit

Rate

Rs.

1.

Acids

of all kinds in crystals powder or liquid.

1

Cu. M

15.60

1

tonne

20.80

2.

Aluminium

and Tin in Blocks, rods, bars, ingots slabs

1

tonne

22.10

3.

(a)

Ammonia in cylinders

1

tonne

13.00

(b)

Ammonia liquid in cases

1

Cu. M.

11.70

(c)

Ammonia liquid in drums

1000

litres

22.10

4.

Ammonium

sulphate

1

tonne

11.70

5.

Animals,

Poultry and Reptiles alive

(a)

Reptiles, Poultry or animals small in coops or cages.

1

Cu. M.

6.50

(b)

Animals unspecified

Each

18.20

(c)

Elephants

Each

130.00

6.

Arecanuts

is bags

1

tonne

9.10

7.

Artificial

silk, piece goods, twists or yam

1

Cu. M.

16.90

8.

Asbestos

goods or cement goods unmanufactured including fibre

1

tonne

23.40

1

Cu. M

11.70

9.

Asphalt,

Bituman, Tar.

1

tonne

13.00

10.

Autorikshaw

and three wheelers

Each

52.00

11.

Baggage

or personal effects accompanying passengers or seamen and personal baggages, horses and carriage accompanying military personnel moving and duty embarking in or disembarking from vessels and the animals ment for providing food for them

Free

Free

12.

Baggage

or personal effects not accompaning passengers or seamen

1

Cu. M

13.00

13.

Ballat

sand

1

tonne

2.60

14.

Beedi

leaves and Beedies

1

Cu.M.

10.00

15.

(a)

Bear in cases

1

Cu. M.

10.40

(b)

Bear in casks

1000

litres

14.30

16.

Bleaching

clay powder

1

tonne

9.10

17.

Boards

of all kinds not otherwise rated

1

Cu. M.

11.70

18.

Bone

and Bone Meals

1

tonne

10.40

19.

Bricks

and tiles of all kinds, ordinary loose

100

Nos. or part thereof.

2.60

1

Cu.M.11.70

11.70

20.

Building

materials not otherwise rated

1

tonne

13.00

21.

(a)

Cashew Kernels

1

tonne

14.95

(b)

Cashew Nuts

1

tonne

10.35

(c)

Cashew Shell liquid in bulk

1

tonne

10.40

(d)

Chasew shell liquid not in bulk.

1

tonne

11.70

22.

Cement

(building)

1

tonne

11.70

23.

Chalk

and clay:-

(a)

Crayons, Billiard, French, school or white

1.

Cu. M.

11.70

(b)

Crude in Bulk

1

tonne

11.70

(c)

Crude not in bulk

1

tonne

13.00

24.

Chemicals

not otherwise rated:-

(a)

in cases

1

Cu.M.

13.00

(b)

in drums or barrels.

1000

litres

22.10

(c)

in bags or barrels or drums

1

tonne

16.90

25.

Clothing

textiles and Hosiery, etc.

1

Cu.M.

15.00

26.

Coal

or coke in bulk (petroleum)

1

tonne

5.75

27.

(a)

Coconuts or Copra

1

tonne

11.70

(b)

Coconuts dessiccated

1

Cu. M.

11.70

28.

(a)

Coffee in bags

1

tonne

11.50

(b)

Coffee essence or powder

1

Cu. M.

10.35

(c)

Coffee husk

1

tonne

9.20

29.

Coir,

Cable, Cordage, rope discs, fibre or yarn, coirmats, mattings or
rugs, nets, bags, carpets

1

tonne

13.00

30.

Copper,

wire, rods, cable, bars, blocks, ingots, pans, pots, slabs, foils

1

tonne

19.50

31.

Crude

Oil (in bulk)

1

tonne

13.00

32.

Curics

1

Cu. M.

13.00

33.

Cycles

Each

13.00

34.

Disinfectants

including gamazine in drums, barrels or casks

1000

litres

22.10

35.

Distempers,

colours, paints, polishes, etc.,

1

Cu.M.

13.00

1

tonne

15.60

36.

Drugs

including Rampatri, Kachura, Chikkaro, Ambahaldy, etc. in cases
or bales

1

Cu.M.

13.00

37.

(a)

Fertilizers (animal or vegetable) and Mauriate of Potash in bulk

1

tonne

10.40

(b)

Fertilizers (animal or vegetable) not tin bulk

1

tonne

11.70

(c)

Fertilizers, chemicals including muriate of potash, rock
phosphate urea and all types of manure in bags

1

tonne

11.70

(d)

Fertilizers, chemicals including muriate of potash, rock phosphate urea and all types of manure in cases

1

Cu.M.

11.70

38.

Ferro

Silicon

1

tonne

12.00

39.

Fish-dried,
fresh, salted, preserved or frozen

1

tonne

11.70

1

Cu. M.

10.00

40.

Fishing

trawlers and motor boats

Each

195.00

41.

Footwear

and leather goods, skin, hides, etc.

1

Cu.M.

20.00

42.

Fruits-fresh

or dry or canned

1

tonne

13.00

43.

Fuel

or diesel oil-

(a)

in bulk

1

tonne

13.00

(b)

in drums

1000

litres

15.60

44.

Gas

of all kinds not otherwise rated in

cylinders

1

tonne

13.00

45.

Glass

tiles, sheets, plates, (silvered or mirror-sheets windows.

1

Cu.M., 1 tonne

15.60

46.

Glycerine

(Medicines in barrels/ in cases)

1

tonne 11.70 1 Cu.M.

15.60

47.

Granite

blocks (stones)

1

tonne

15.60

48.

Grease

1

tonne

13.00

49.

Groundnuts

1

tonne

11.70

50.

Gunnies/Hessian

1

tonne

10.00

51.

(a)

Gypsum in bulk

1

tonne

6.50

(b)

Gypsum not in bulk

1

tonne

1

Cu.M.

13.00

11.70

52.

(a)

Hardware including beams, chains, pipes, rods, angles, channels, cables, etc, tin places, Electrolytic in plates including steel furniture

1

tonne

18.20

(b)

Stainless steel ware and aluminium ware including aluminium extrusions and powders,

1

tonne

1

Cu.M.

15.60

53.

Heavy

Lifts:-

(a)

Heavy lifts of 1 tonne and above but below 2 tonnes. 1 tonne 1

Cu.M.

26.00

(b)

Heavy lifts of 2 tonnes and above but below 5 tonnes.

1

Cu.M.

32.50

(c)

Heavy lifts of 5 tonnes and above but below 10 tonnes.

1

tonne

1

Cu.M.

39.00

(d)

Heavy lifts of 10 tonnes and above

1

tonne 1 Cu.M.

52.00

(e)

Containers and empty containers irrespective of weight

Each

26.00

Note.

- Cargo inside the containers shall be assessed according to the

rate applicable to the cargo.

54.

Instruments

and Electrical goods

1

Cu.M.

20.0

55.

Iron

and Steel materials including pig iron and other ingots.

1

tonne

20.00

56.

Iron

scraps and drops

1

tonne

10.00

57.

Jute

raw, fibre, rope, twine, twist yam webbing or rugs including 'A'

twills and 'B' twills and manila rope

1

Cu.M.

9.10

58.

(a)

Kerosene oil (in bulk)

1000

litres

(b)

Kerosene oil in tins, cases, casks or drums

1000

litres

59.

Lead

manufactured or unmanufactured

1

tonne

15.60

1

Cu.M.

1

Cu. M.

60.

lemon

grass oil or sandalwood oil

1000

litres

61.

Machines

and Machinery not otherwise rated and parts and accessories thereof including metres of all kinds and refrige rator and cycles, in knocked down condition 1 tonne and cartoned cycles. ,
62.

(a)

Magnesite of all kinds including ilmanite, monazite, bauxite, rutile and white sand in bulk

1

tonne

13.00

(b)

Magnestie of all kinds not in bulk 1 tonne

13.00

63.

Military

stores and equipments

1

tonne

1

Cu.M.

1

tonne

64.

Motor

Cars, Lorries, Tractors, etc.

Each

195.00

65.

Motor

Cycles, Scooters, etc.

Each

26.00

66.

Naphtha

1000

litres

20.80

67.

Oilcakes

and fodder of all kinds not other-wise rated

1

tonne

13.00

68.

(a)

Oils, coconuts, fish, stores, and provisions, etc., not otherwise rated

1

tonne

11.70

(b)

Oilseeds not otherwise rated including pulses

1

tonne

13.00

69.

(a)

Oresin bulk (Manual handling)

1

tonne 7.00

(b)

Ones loaded in open sea

1

tonne

50

per cent. of the normal wharfage rates for the actual quantity of ore loaded in the open sea for untopping purpose.

70.

Papers

of all kinds including writing, printing, gloss, flint, emery, sand and board

1

Cu.M.

11.70

71.

Petrol

1000

litres

20.80

72.

Phosphate

(in bulk)

1

tonne

11.70

73.

Pipes,

cast iron or galvanised and fittings thereof

1

Cu.M.

11.70

74.

Powder,

toilets and preparations including tooth powder, sandalwood, etc.

1 tonne

15.60

1 Cu. M.

13.00

75.

Prawns,

froglegs, lobster:

(a)

Fresh, dry or salted 1 tonne

13.00

(b)

Prawns, froglegs and lobster (tals) preserved or frozen

1

Cu. M.

11.73

76.

Rice-Paddy,

when and other foodgrains whole crushed or powered

1

tonne

13.00

77

Rice

Bran and Wheat Bran

1

tonne

7

80

1

Cu. M

78.

Rubber

goods or products including tyres, tubes, hoses, etc.

1

tonne

19.50

1

Cu.M.

13.00

79.

Rubber,

raw or solution including reclaimed and synthetic varieties

1

tonne

16.90

80.

Salts

(common rock and marine, etc.) in bulk or in bags

1

tonne

7.80

81.

Sanitary

fittings and goods

1

Cu.M.

15.60

82.

Silk,
real, yarn, cuttings, twists or piece goods

1

Cu. M.

23.40

83.

Soaps,
bars, laundry, households, medicated or toilet

1

tonne

15.60

84.

Soda

Ash

1

tonne

13.00

85.

Spices

(Cardamom, Ginger, Turmeric, Coriander, seed and chillies, etc)

1

tonne

15.60

86.

Staple

fibre

1

Cu. M.

11.70

87.

Stationery

not otherwise rated

1

Cu. M.

10.00

88.

Sugar,

Candy or cube (in cases or in bags)

1

tonne

11.70

1

Cu.M.

89.

(a)

Sulphur in bags and in other packings

1

tonne

15.60

1

Cu. M.

(b)

Sulphur in bulk

1

tonne

11.70

90.

(a)

Tapioca chips, flakes, flour starch, waste and tamarind seed
powder in cases

1

Cu. M.

11.70

(b)

Tapioca chips, flakes, flour starch, waste and tamarind seed
powder in bags

1

tonne

13.00

91.

Tea

1

Cu.M.

9.10

92.

(a)

Teak wood and Rosewood logs and their products

1

tonne

17.25

1

Cu.M.

(b)

Sandalwood logs and their products

1

tonne

23.00

1

Cu.M.

93.

Timber

and timber products including plywood 1 tonne

13.80

1

Cu.M.

9.20

94.

(a)

Tobacco, raw and leaf

1

Cu.M.

6.60

(b)

Tobacco, manufactured

1

Cu.M.

13.20

95.

Turpentine

and its substitutes in drums or casks

1000

litres

20.80

1

tonne

96.

Umbrellas

or fittings and parts thereof

1

Cu.M.

10.40

97.

Vegetables

1

Cu.M.

12.00

98.

Wine

and liquor on cases in casks

1

Cu.M. 1000 litre

23.40

99.

Yarn,

cotton and wool, raw, waste or manufactured

1

Cu.M.

13.00

100.

Zinc,

Zinc concentrate (in bulk)

1

tonne

20.80

101.

Unenumerated

goods and goods not otherwise rated

1

tonne

19.50

1

Cu.M.

15.60

1000

litres

15.60

Note. - Bona fide consumable/non-consumable ship stores will not be subject to any wharfage dues.

Appen

(See

Export AP

Agent

Book No:

Name of the Port: New Mangalore.

Name of the Vessel

Name of the Shipping Line

Traffic Manager,

Port of New Mangalore,

Panambur.

Sir

Please pass the undermentioned goods, to be shipped per SS/MV.

S.No

of the consignment

Name

and address of the consignor

No.

of Packages

Marks

and numbers on the Packages (consignment)

Name

of the commodity

Gross

weight of the consignment (DWT)

Measurement

l

x b x h

Freight

(Tonns)

1

2

3

4

5

6

7

8

Appen

(See

Export Appli

Dated Received the sum of Rupees

Traffic Manager,

Port of New Mangalore. Receipt NoDated.....

F.A.O. & C.A.O

Port of New Mangalore.

Name of the Port: New Mangalore

Name of the Vessel

Name of the Shipping Line

Sir,

Please pass the undermentioned goods, landed ex. SS/MV

S.No

of the consignment

Name

of the consignee / importer with address

No.

of Packages

Marks

and numbers on the Packages (consignment)

Name

of the commodity

Gross

weight of the consignment (DWT)

Measurement

l x b

x h

1

2

3

4

5

6

7

Dated Received the sum of Rupees.....

Traffic Manager,

Port of New Mangalore.

Receipt NoDated.....

F.A.O.& C.A.O.

Port of New Mangalore.

DIX

Fule 4

application

Port Register No.

To be shipped on

Name of the Agent or Charterer :

Nationality of the Flag: bound to the port of.....

Item

No. of Schedule

Port

and country of destination Port / Country

Country

to which consigned

Value

of commodity (CIF value)

Rate

of shipping dues

Amount

of shipping dues

Place

district and state of origin

9

10

11

12

13

14

15

Total

I/We hereby declare that the particulars entered above are true and correct.

Signature of Exporter.

DIX

rule (4)

CATION

Traffic

Manager,

Port

Register. No.

Port

of New Mangalore, Panambur.

To

be landed on :

Name of the Agent or Charaterer:

Nationality of the Flag:

arrived from the Port of

Freight

(tons)

Item

No. of Schedule

Port

and country of shipment Port/Country

Country

of origin

Value

of Commodity with CIF

Rate

of landing dues Rs. P.

Amount

of landing dues Rs. P.

(8)

(9)

(10)

(11)

(12)

(13)

(14)

Total

I/We hereby declare that the particulars entered above are true and correct.

Signature of Consignee/Importer.

Related AI tags, queries and research notes

Translation